

Ramesh S/O Shriram Gulhane vs Prabhakar S/O Gangadhar Bijwe And ... on 9 August, 2016

Author: Prasanna B. Varale

Bench: Prasanna B. Varale

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
: NAGPUR BENCH : NAGPUR.

APPEAL AGAINST ORDER NO. 3 OF 2016

APPELLANT : Ramesh S/o Shriram Gulhane,

Aged about 35 years, Occu. Agriculturist,
R/o Near Kholapuri Gate, Daryapur,
Tq. Daryapur, Dist. Amravati.

- VERSUS -

RESPONDENTS : 1] Prabhakar S/o Gangadhar Bijwe,
ig Aged 60 years, Occu. Labour.

2] Santosh S/o Prabhakar Bijwe,

Aged 32 years, Occu. Labour.

3] Sau. Kusum W/o Prabhakar Bijwe,
Aged 58 years, Occu. Labour

4] Sudhakar S/o Pabhakar Bijwe,
Aged 30 years, Occu. Labour.

5] Ku. Rita D/o Prabhakar Bijwe,
Aged about 18 years, Occu. Household,

6] Ayush S/o Ramesh Gulhane,
Aged about 6 years, Occu. Student,

7] Ku. Akansha D/o Ramesh Gulhane,
Aged about 3 years,

Respondents 6 & 7 represented through
respondent no.1. All residents of Kholapur,
Athavdi Bazar, Tq. Bhatkuli, Dist. Amravati.

Mr. Tejas S. Deshpande, Advocate for the appellant.
Mr. S. S. Thorat, Advocate for the respondent nos. 1 to 7.

CORAM : PRASANNA B. VARALE, J.
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DATED : 09 August, 2016.

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ORAL JUDGMENT

Heard. ADMIT. Considering the controversy involved in the appeal, which relates to custody of minor children, this appeal is heard finally with the consent of the learned counsel for the parties.

2] By this Appeal against Order, the appellant is challenging the order passed by the learned Ad-hoc District Judge-1, Achalpur, dated 10.09.2015 in Misc. Civil Application No. 14 of 2015, thereby

dismissing the application filed by the appellant seeking custody of his two children.

3] Mr. Deshpande, the learned counsel for the appellant submitted that the appellant, who is an agriculturist, owns and possesses 1.5 acres of land at village Kholapur, Tq. Bhatkuli, Dist.

Amravati. The marriage of the appellant with the daughter of respondent no.1, namely Sarika was solemnized on 10.05.2007. the couple was blessed with two children i.e. son Ayush and daughter Akansha. Sarika, the wife of the appellant, expired on 22.09.2013, as she was suffering from high fever and dengue. It is further submitted by the learned counsel for the appellant that after death of Sarika, the respondent no.1 and other matrimonial relations approached the 3 AO3.16.odt appellant and requested him that they would like to celebrate Deepawali festival along with their grand children Ayush and Akansha and requested the appellant for taking away the children with them.

The appellant, under bona fide belief that the grand parents are willing to celebrate the festival with grand children, permitted the respondent no.1 and other matrimonial relations to take away the children with them. After waiting for a reasonable period and after making requests to the respondent no.1, it was found that there was no positive response from the respondents for handing over the children after Deepawali festival celebration. The appellant, left with no choice but to approach the Court, for seeking custody of the children.

4] The appellant herein had submitted an application before the learned District Judge-1, Achalpur, under the provisions of the Guardian and Wards Act. It was submitted in the application that the appellant was taking due care of his family including the wife and the children. It was submitted in the application that on 22.09.2014, the wife of the appellant/applicant expired due to her ailment. The appellant admitted the children in one English school and was looking after the children personally as well as with the help of other family members. It was submitted in the application that son Ayush was 4 AO3.16.odt studying in English primary school at Daryapur in KG-I for the academic session 2012-2013. Then it was submitted in the application that on the pretext of celebrating Deepawali festival, the children were permitted to go with the grand parents, but in spite of the assurance given, there was no positive response for bringing back the children to the appellant. It was submitted that on the contrary, when the appellant made request, threats were given to the appellant of lodging criminal cases against him. When the appellant along with his elder brother had visited the house of respondent no.1 on 18.11.2013 for bringing back the children, the respondents hurled abuses and the appellant and his brother were driven out of the house with threat of life. It was further submitted that the appellant is the father of the children and being father is he is natural guardian of the children. It was submitted in the application that the appellant is a farmer and having sufficient means to take care of the education and welfare of his children. The application was opposed by the respondents by raising a ground that the application is untenable and by additional submissions, it was submitted that the applicant /appellant was ill-treating and harassing his wife Sarika. The application was further opposed on the ground that Sarika suffered ailments due to continuous ill-treatment at the hands of the appellant.

It was submitted in the reply that the respondents are the grand parents 5 AO3.16.odt and maternal relations of the children and they were taking proper care of the children. It was alleged in the

written submissions that the appellant was addicted to alcohol consumption and as such, he would not be in a position to take care of the children. It was also submitted that mother of the appellant is in her advanced age and there is no other member in the family of the appellant to take care of the children.

5] The learned Ad-hoc District Judge, Achalpur, on consideration of the rival contentions of the parties, arrived at a conclusion that as the appellant performed second marriage and that being the biggest hurdle for the welfare of the children and finding no favour with the applicant, dismissed the application.

6] Mr. Deshpande, the learned counsel for the appellant in his detailed submissions led critical attack on the order impugned in the present appeal. It was the submission of the learned counsel that the order passed by the learned Judge is not only contrary to the settled legal position, but is also in contrast to the factual aspects. The learned counsel for the appellant submitted that the appellant, who is the father of the children, to claim the custody of the children submitted sufficient material to establish the claim that the appellant is financially sound and was taking due care of the education as well as well being and 6 AO3.16.odt welfare of his children. The learned counsel submitted that son Ayush was admitted in one English school at Daryapur. The learned counsel submitted that the application was opposed by raising superficial and artificial grounds. The learned counsel by inviting my attention to the statements made in the reply to the application at the instance of the respondents, submitted that it is alleged that the appellant is responsible for the death of his wife. It is alleged that the appellant is an alcoholic person. The learned counsel submitted that all these allegations are just for the sake of raising them, but there is absolutely no material placed on record in support of the same. The learned counsel further submitted that on the contrary, the learned Ad-hoc District Judge, in clear and unambiguous words observed that there is no documentary proof on record for coming to the conclusion that Sarika was subjected to ill-treatment and harassment at the hands of the appellant. It is further observed that the medical certificate of cause of death, produced on record, clearly show that Sarika died due to natural death. The learned counsel then submitted that when there was absolutely no ground raised nor material placed on record to submit that the appellant performed second marriage, the learned Ad-hoc District Judge only on the basis of oral submissions made at the stage of arguing the matter that the applicant has performed second marriage 7 AO3.16.odt with a lady having one issue from her earlier husband, dismissed the application. The learned counsel further submitted that the learned Ad-

hoc District Judge ought to have considered the paramount consideration namely the welfare of the children while deciding the application.

7] The learned counsel for the appellant submitted that the appellant is financially sound so as to take care of the education and welfare of his children. The learned counsel by placing on record a copy of the application seeking maintenance submitted that the proceeding was filed at the instance of children Ayush and Akansha through the respondent no.1 before the learned Judicial Magistrate, First Class, Bhatkuli, Amravati. The learned counsel submitted that for claiming maintenance, it was submitted in the application that the appellant is the owner of agricultural land admeasuring 3 He and 87 R and apart from his agricultural income, the appellant is engaged in the business of sale and

purchase of animal husbandry and earns additional income of Rs.20,000/- per month. It is stated in the maintenance application that Ayush is studying in 2 nd standard and his annual fees is Rs.5250/- . Apart from the school fees, the other expenses such as tuition fees, medical treatment and daily needs, are @ Rs.5000/- per 8 AO3.16.odt month. Thus, maintenance of Rs.10,000/- per month is claimed for the children. The learned counsel submitted that thus, on one hand the respondents in reply to the application submitted that they are financially sound to take care of the children and on the other hand, the application is submitted seeking maintenance showing their financial disability.

8] The learned counsel for the appellant placed reliance on the judgment of this Court in Appeal Against Order No. 5 of 2015, dated 21.07.2016 (Raju @ Yunus S/o Ahmed Punjani .Vs. Mohd. Imran Isani S/o Noor Mohd. Isani) in support of his submissions.

9] Per contra, the learned counsel appearing for the respondents vehemently submitted that the welfare of the children is possible only if custody of children is granted to the respondents i.e. respondent no.1 -grand father and other matrimonial relations. It is submitted by the learned counsel for the respondents that Sarika was subjected to continuous ill-treatment at the hands of the appellant. The learned counsel further made a bold submission that as the appellant himself was responsible for death of Sarika, there is an apprehension of threat of life to the children at the hands of the appellant. The learned 9 AO3.16.odt counsel for the respondents further submitted that as the appellant performed second marriage during the pendency of the application and this fact came to the knowledge of the respondents at the fag end of the proceedings, it was orally submitted before the learned District Judge that the appellant has performed second marriage and accordingly by taking note of the said fact, the learned District Judge rightly dismissed the application. When this Court made a pointed query to the learned counsel for the respondents whether any criminal case or at least a report is lodged against appellant alleging that the appellant is responsible for death of his wife Sarika, the learned counsel submitted that no such report was lodged and further submitted that it was the responsibility of the police authorities to lodge such report. The learned counsel further submitted that as the appellant performed second marriage during pendency of the application, the said fact was not incorporated in the written submissions. The learned counsel for the respondents, on these grounds prayed for dismissal of the appeal.

10] It is now settled position of law, guided by the numerous judgments of this Court as well as the Hon'ble Apex Court that in the matter of custody of children, the Court must look into the most important aspect of paramount consideration i.e. welfare of the 10 AO3.16.odt children. In the present case, it is not in dispute that the appellant is the father and as such natural guardian of the children i.e. respondent nos.6 and 7. Son Ayush is 8 years of age and daughter Akansha is 5 years of age. The appellant in his application before the learned District Judge has specifically submitted that he is the owner of agricultural land and he admitted his son Ayush in a English primary school at Daryapur in KG-I class for the academic session 2012-13. Akansha is not yet admitted in the school. The appellant submitted that death of Sarika was natural death due to high fever and dengue. The learned counsel for the respondents, though vehemently submitted that it was the appellant who is responsible for death of Sarika as Sarika was subjected to continuous ill-treatment and harassment on account of dowry, there is nothing placed on record to show that any report was

filed for the death of Sarika alleging foul play against the appellant. As stated above, even a pointed query was made to the learned counsel for the respondents in this regard, to which the learned counsel replied that no such report was lodged and it was for the police authorities to take steps for lodging report. It is interesting to note that on the backdrop of these allegations, the learned Ad-hoc District Judge, who had an occasion to peruse the material and assess the same, found that a medical certificate was placed on record showing that Sarika Ramesh 11 AO3.16.odt Gulhane died due to natural death. There is also no material placed on record in support of the allegation that the appellant is an alcoholic.

The learned District Judge, observed thus :-

"7. While arguing the matter, the learned advocate for respondents pointed out that, applicant has performed his second marriage with a lady who is having one issue from her earlier husband.".

The learned Judge further referred to the judgment of the Apex Court in case of Shyamrao Maruti Korwate .vs. Deepak Kisanrao Tekam, reported in (2010) 10 SCC 314 and observed that :

".....The Hon'ble Supreme Court in this case found the second marriage of his father of the child as biggest hurdle in appointing him as guardian and so found the welfare of his minor only on the custody of his maternal grandfather and further observed that considering the facts in the present case coupled with the ratio led down in the case law cited by the applicant as well as the case law of the Supreme Court, he had to decide the petition with paramount consideration that the welfare of the child and their comforts, the applicant is the natural guardian therefore, his ties of the affection with his child could not be disregarded. However, due to the second marriage by applicant and having one son to his second wife is the main hurdle to handover custody of non-applicant nos.6 and 7 to the applicant though he is

12 AO3.16.odt natural guardian of the children."

11] The observations of the learned District Judge are clearly unsustainable. To arrive at a conclusion that the second marriage of the appellant is the hurdle for handing over custody of the children to the applicant, the learned Ad-hoc District Judge ought to have relied on certain material presented on record. Merely because it was submitted in the course of arguments that the appellant performed second marriage, the learned Ad-hoc District Judge ought not to have jumped to that conclusion. As referred to above, when the application was filed at the instance of the appellant, in the written submissions filed by the respondents, no such ground of second marriage performed by the appellant was raised. The said ground was raised at the stage of final arguments. As such, there was no opportunity for the appellant to counter the submission or to place any material to counter the submission of second marriage and the learned Ad-hoc District Judge arrived at that conclusion assuming that performance of second marriage by the appellant is an admitted fact. The learned Ad-hoc District Judge thus committed a grave error in jumping to the conclusion. The learned Ad-hoc District Judge also committed an error by observing that there was a desire expressed by

Ayush and the same was to be respected. The learned District Judge adopted the course, 13 AO3.16.odt firstly which was not proper as it reveals from the order that the learned District Judge made queries with Ayush in open Court. The learned Judge then observed that Ayush was bold enough and intelligently submitted that he does not want to go to house of his father because his grandmother, grandfather, sister of his mother and brother of his mother were taking his proper care and maintaining him and his sister neatly. The learned Judge observed that 'he further told that there is a danger to his life from the applicant'. Though, the learned Judge further observed that he got verified whether such statement regarding danger to his life is whether tutored by his grandfather or anybody else and Aayush vehemently said "No". It is least to say was an error committed by the learned District Judge. The age of the child is hardly eight years. It is difficult to come to a conclusion that a child of eight years of age, could have gauged the aspect of danger to life. This fact also assumes importance on the backdrop of the material namely, till the death of mother of the children, the children were residing with the appellant. Son Ayush was admitted in primary class of one English school. After the death of mother i.e. wife of the appellant, the children were taken in custody by the grand parents and other maternal relations. In such a situation, there was hardly any question of the children, more particularly son Ayush facing any apprehension or 14 AO3.16.odt danger to his life. Thus, the learned Ad-hoc District Judge, on this aspect also, in my opinion, has committed a grave error.

12] It seems that the learned District Judge in stead of considering the application in a legal premise, permitted himself to swayed away by emotions. This can be seen from the observations of the learned District Judge in paragraph 9 of the impugned judgment, which reads thus :

"9. Mother's mother, mother's father, mother's brother and mother's sister are taking proper care of the children and therefore, the children are not feeling that a vacuum is created in their life due to death of their mother. It is said in Hindu culture "AAI MARO MAVSHI JAGO". The meaning of the above sentence is, sister of mother may have equal love and affection like mother with the children of her sister."

This clearly show that the learned Judge was swayed away with an emotional outburst instead of looking to the matter in a legal and logical premise.

13] The material placed on record further show that there is considerable merit in the submission of the learned counsel for the appellant that the welfare and well being of the children would 15 AO3.16.odt certainly be taken care of in proper and positive way by the appellant as the appellant is financially in sound position to provide the basic facilities to his children such as, good schooling, education and other daily needs, medical assistance, whereas the respondent no.1, who himself has submitted an application for and on behalf of the children seeking maintenance from the appellant, in that application submitted that the appellant is financially sound to bear the burden of education fees etc. for the children. The learned counsel for the appellant was also justified in placing reliance on the judgment of this Court in Appeal Against Order No. 05 of 2015, dated 21.07.2015. It would not be out of place to refer to paragraph 10 of said judgment, in which this Court has referred to the observations of the Hon'ble Apex Court in the case of Mausami Moitra Ganguli Vs. Jayant Ganguli [(2008) 7 SCC 673] while dealing with the issue in question. The Apex Court observed thus :-

"19. The principles of law in relation to the custody of a minor child are well settled. It is trite that while determining the question as to which parent the care and control of a child should be committed, the first and the paramount consideration is the welfare and interest of the child and not the rights of the parents under a statute. Indubitably the provisions of law pertaining to the custody of a child contained in either the Guardians and Wards Act, 1890 (Section 17) or the Hindu Minority and

16 AO3.16.odt Guardianship Act, 1956 (Section 13) also hold out the welfare of the child as a predominant consideration. In fact, no statute, on the subject, can ignore, eschew or obliterate the vital factor of the welfare of the minor.

20. The question of welfare of the minor child has again to be considered in the background of the relevant facts and circumstances. Each case has to be decided on its own facts and other decided cases can hardly serve as binding precedents insofar as the factual aspects of the case are concerned. It is, no doubt, true that father is presumed by the statutes to be better suited to look after the welfare of the child, being normally the working member and head of the family, yet in each case the Court has to see primarily to the welfare of the child in determining the question of his or her custody. Better financial resources of either of the parents or their love for the child may be one of the relevant considerations but cannot be the sole determining factor for the custody of the child. It is here that a heavy duty is cast on the Court to exercise its judicial discretion judiciously in the background of all the relevant facts and circumstances, bearing in mind the welfare of the child as the paramount consideration."

14] Considering all the above referred facts, in my opinion, the learned Ad-hoc District Judge has committed an error in dismissing the application filed by the appellant. The order impugned in the present 17 AO3.16.odt appeal is clearly unsustainable and needs to be interfered with.

Resultantly, the Appeal against Order is allowed. The order, dated 10.09.2015 passed by the learned Ad-hoc District Judge-1, Achalpur in Misc. Civil Application No. 14 of 2015 is quashed and set aside. The Misc Civil Application No. 14 of 2015 seeking custody of the children, is allowed.

The appeal is disposed of in the aforesaid terms.

JUDGE Diwale 18 AO3.16.odt C E R T I F I C A T E "I certify that this Judgment/order uploaded is a true and correct copy of original signed Judgment/Order."

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